# WARRANTY ATLAS · West Virginia (WV)

Law last amended: 2024 (eff. 2024-06-05) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-09

Cites: W. Va. Code § 17A-6A-8a; W. Va. Code § 17A-6A-10(b)(19) (audit/chargeback); W. Va. Code §§ 17A-6A-16, -17 (remedies)

## Labor reimbursement by coverage type

| Coverage | Status | Paid hours | Pinpoint / date note |
|---|---|---|---|
| **Factory warranty** | **Required** | Factory time (reasonable/adequate standard where stated) | § 17A-6A-8a(m)(1); see (a)(3), (e) |
| **Mfr-backed service contract** | **Not addressed** | - | § 17A-6A-8a(a)(2) |
| **CPO warranty** | **Not addressed** | - | § 17A-6A-8a(b)(1) |
| **Independent service contract** | **Not addressed** | - | § 17A-6A-8a(b)(2) |

Hourly rate: Average labor rate = total labor sales ÷ total hours that generated them, from 100 sequential nonwarranty customer-pay ROs or 90 consecutive days, within 180 days. The rate is presumed reasonable and takes effect 30 days after the manufacturer approves it; if the manufacturer does not rebut within 30 days, it is deemed approved. The manufacturer can rebut only for fraud, inaccuracy, noncompliance, or unreasonableness against all other same-line dealers in an economically sim…

## Audit fields

| Field | Rule | Pinpoint |
|---|---|---|
| **Claim decision** | 30 days; late claim deemed approved: no rule in statute. Written notice of the grounds for disapproval. | § 17A-6A-8a(k) |
| **Payment** | 30 days after approval. Dealer filing deadline: Silent. No denial of an otherwise valid, properly submitted claim for clerical error or omission, incidental non-material processing fail… | |
| **Chargebacks** | 12 months; fraud: Limit does not apply where a claim is fraudulent. Window runs from when the dealer made the claim. Chargeback only if false/fraudulent, repairs improper/unnecessary, or failure to reasonably substantiate per reasonable written requirements in effect when claim arose ((k)); no chargeback until notice and a 30… | § 17A-6A-10(b)(19); § 17A-6A-8a(c), (k) |
| **Rate resubmission** | Demand (by dealer or manufacturer) not within 12 months of the last labor-rate declaration. Sample: 100 ROs or 90 days (dealer chooses); ROs <= 180 days old. Excluded: Discounted / promotional, Routine maintenance, Tires, Prep / reconditioning, Other (see text). | § 17A-6A-8a(d)-(f), (i) |
| **Mfr response** | 30 days; no response = approved: Yes. Challenge: Rate presumed reasonable; manufacturer must show it is (1) fraudulent or inaccurate, (2) not established per the section, or (3) unreasonable vs. all other same line-make dealers in an economically similar area of the state. Forum: Dealer civil action in circuit court of its county within 90 days aft…. | § 17A-6A-8a(g) |
| **Penalties** | Dealer action for damages and equitable relief; prevailing dealer may recover up to treble damages plus reasonable attorney's fees; declaratory judgment; dealer-association standing; injunction without bond. None. Manufacturers are not licensed under ch. 17A art. 6 (§ 17A-6-3), and DMV license sanctions (§ 17A-6-18) contain no warranty… | W. Va. Code §§ 17A-6A-16, 17A-6A-17 |
| **Audit procedures** | Audit climate score 33/100 (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 6/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 30 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure. | |

## Statute quotes

***Claims*** *(§ 17A-6A-8a(k)): "shall be paid by the manufacturer within 30 days after approval and shall be approved or disapproved by the manufacturer within 30 days after receipt. When any claim is disapproved, the dealer shall be notified in writing"*

***Chargebacks*** *(§ 17A-6A-10(b)(19); § 17A-6A-8a(c), (k)): "Audit any dealer in this state for warranty parts or warranty service compensation ... more than 12 months after the claim for payment or reimbursement has been made by the dealer."*

***Rate*** *(§ 17A-6A-8a(d)-(f), (i)): "The average labor rate shall be determined by dividing the amount of the dealer's total labor sales by the number of total hours that generated those sales."*

***Factory time*** *(§ 17A-6A-8a(m)(1); see (a)(3), (e)): "The manufacturer shall use time allowances for the diagnosis and performance of the warranty and recall work and services that are reasonable and adequate for the work or services to be performed by a qualified technician."*

## Notes

Bars paying on a 'flat-rate figure that is less than what the dealer charges for retail work' ((b)(3)). Dealer's written request to modify a time allowance is 'presumed reasonable' and may not be unreasonably denied ((a)(3), (e)); diagnostic allowance includes time communicating with the manufacturer (2024). Trucks/buses over 26,001 lb GVW: actual retrieval/return time at retail rate, $50 minimum per electronic-tool operation, +3 hours per 24-hour manufacturer-caused hold ((j)). OTA customer-assistance compensation required ((a)(4)). No 'deemed approved' rule for warranty claims (only for rate submissions). Article 6A has no administrative penalty provision. Ch. 17A art. 6 licenses dealers, not manufacturers, and its sanctions (§ 17A-6-18) have no warranty ground. 91 CSR has no warranty, audit or chargeback rules.

Source: official · https://code.wvlegislature.gov/17A-6A-8a/ · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.